OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Questions for Cr Casmiri on the Greenwell Point Wharf post and SIG rates pledge

Sent 28 September 2026 · To Cr Casmiri, Cr Dunn, Mayor White · Response requested by 19 October 2026

28 September 2026

Cr Luciano Casmiri

Shoalhaven City Council
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NOTE THIS MESSAGE HAS BEEN COPIED TO ALL THE CONSULTATIVE GROUPS

Re: Two recent Facebook posts — Greenwell Point Wharf and the SIG rates pledge
Dear Cr Casmiri,

I am writing to you about two posts published on the "SIG for Shoalhaven" Facebook page and your own account. I would like to give you the opportunity to explain your position and correct anything that is factually incorrect or misleading before I publish.

1. The Greenwell Point Wharf post (CL26.200)

The first post, presented as explaining an earlier comment you made about the Shoalhaven Heads Pool, concerns the Notice of Motion for the Greenwell Point Wharf, CL26.200, considered by Council in the resumed Ordinary Meeting on Thursday 24 September 2026.

The post states that "there is some misunderstanding by some" about the costs contained in the motion, and quotes recommendation 5 as: "Provide a commitment that if major works or eventual replacement are required, Greenwell Point is not left without a functional working wharf."

That wording was not what Council resolved.

Cr Boyd moved an amendment on the floor replacing it with a commitment for Council to work with the State Government to achieve that outcome, rather than a direct commitment by Council itself. The mover, Cr Tribe, and seconder, Cr Dunn, accepted that amendment, and it formed part of the motion actually carried, 7 votes to 5. You voted against the amended motion.

The post makes no mention of that amendment. It presents the pre-amendment wording as though it is what Council resolved, and criticises unnamed "some" for misunderstanding wording that no longer forms part of the record.

On this post, I would ask you to address:

1.1. Are you the author of this post? If not, who is, and on what basis does the "SIG for Shoalhaven" page publish a personal, first-person opinion without identifying who wrote it?

1.2. Will you correct the post to reflect the amendment moved by Cr Boyd, accepted on the floor, and the resolution as actually carried?

1.3. Who specifically did you mean by "some" who have misunderstood the motion?

1.4. Recommendation 5, as carried, commits Council to no expenditure — only to working with the State Government. On what basis does the post continue to describe the motion as an unfunded ratepayer obligation?

1.5. What is the source for the claim in the post of "additional council staff costs and potentially additional engineering and consultants report costs"? Can you point to the figure, or the staff advice, on which that statement is based?

1. The "SIG President and Treasurer" post

The second post, published under your name identifying you as "Shoalhaven Independents Group (SIG) President and Treasurer," says you will "continue to work with all the SIG elected regardless of their party membership" so that "the commitments made by SIG elected councillors during the election campaign remain as their SIG pledged to deliver a financially sustainable council with no rates increase above Peg."

On this post, I would ask you to address:

2.1. "President" and "Treasurer" are registered office-holder positions of SIG as a political party with the NSW Electoral Commission — they are not positions of authority over the council conduct of elected councillors. Are you asserting some ongoing authority over Cr White and Cr Dunn, who have both resigned their SIG membership? If so, what is the basis for that authority?

2.2. The Local Government Act 1993 does not bind an elected councillor to a party platform, and a councillor who resigns from a party owes it nothing further as a matter of law. Do you accept this? If not, what is the legal or procedural basis for saying that commitments "made by SIG elected councillors" during the 2024 election campaign "remain" binding on councillors no longer in the party?

2.3. You describe the outstanding commitment as delivering "a financially sustainable council with no rates increase above Peg." On 17 December 2024, Council resolved at CL24.403/MIN24.691 to apply to IPART for a permanent 12% increase in total rates — a motion you personally seconded, carried 10 votes to 3, with Mayor White voting in favour. IPART approved that increase, applicable from 1 July 2025, against a rate peg of approximately 3.8%. Given this, on what basis do you describe "no rates increase above

Peg" as a commitment still to be delivered, rather than one already exceeded by the SIG-led council, with your own vote recorded in favour of doing so?

2.4. Will you correct or clarify this post in light of the above?

I intend to publish on both matters and would welcome your response, addressing each of the points above, in time to include it.

Yours sincerely,

Steven Prothero

Eye on Shoalhaven Council
